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February 20, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 130

By: Burns of the Senate

and

Boles of the House

[Corporation Commission - feasibility study -
appropriation - codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 803 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. Not later than ninety (90) days after the effective date of this act, the Corporation Commission shall start the process to engage an outside consulting firm to conduct a technical and legal feasibility study on nuclear energy generation in this state. This engagement shall be exempt from the state procurement process under Section 85.1 et seq. of Title 74 of the Oklahoma Statutes and follow the Corporation Commission process to retain expert witnesses on behalf of the agency to ensure the ability to timely conduct the

1 study and complete the requirements of this section. The consulting
2 firm shall be well-established in the nuclear industry.

3 B. The feasibility study shall evaluate and consider:

4 1. Advantages and disadvantages of generating nuclear energy in
5 this state, including, but not limited to, the economic and
6 environmental impacts;

7 2. Methods to maximize existing workforce and products made in
8 this state for the construction of nuclear energy generation
9 facilities;

10 3. Design characteristics, including recommendations for design
11 specification and site selection;

12 4. Environmental and ecological impacts;

13 5. Land and siting criteria, including specific geographic
14 areas that are best suited for new nuclear generation, as well as
15 cities near military bases that may use new nuclear electric
16 generation to meet the military resiliency requirements of 10
17 U.S.C., Section 2920;

18 6. Safety criteria;

19 7. Engineering and cost-related information;

20 8. Small modular nuclear reactor and microreactors capability;
21 and

22 9. Socioeconomic factors, including, but not limited to:

23 a. workforce education, training, and development,

24 b. local and state tax base,

- c. supply chain capability,
- d. permanent and temporary job creation,
- e. timeline for development, including areas of potential efficiencies, and potential leveraging of existing facilities within this state,
- f. literature review of studies that have assessed the potential impact of nuclear energy generation, and
- g. policy recommendations to support nuclear energy generation, including a survey of federal programs to financially assist the development of a nuclear project in this state.

C. The Corporation Commission in conjunction with retail electric suppliers and municipally owned electric utilities shall cooperate in providing information relevant to the feasibility study, providing for reasonable safeguards to protect confidential information.

D. Not later than nine (9) months after the effective date of this act, the Corporation Commission shall electronically deliver the feasibility study findings to the President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the Governor.

E. In the event the Corporation Commission is unable to hire a consultant to complete the report for an amount less than the funds appropriated in Section 2 of this act, the Commission is authorized

1 to conduct a notice of inquiry and utilize the information received
2 from the stakeholders in conjunction with a consulting firm to
3 reduce the cost of gathering information for the purpose of the
4 study and report.

5 SECTION 2. There is hereby appropriated to the Corporation
6 Commission from any monies not otherwise appropriated from the
7 General Revenue Fund of the State Treasury for the fiscal year
8 ending June 30, 2024, the sum of Three Hundred Seventy-five Thousand
9 Dollars (\$375,000.00) or so much thereof as may be necessary to
10 perform the feasibility study as provided for in Section 1 of this
11 act.

12 SECTION 3. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
17 February 20, 2025 - DO PASS AS AMENDED BY CS
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